

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Luke Petrinovic	Team: Squad #13	CCRB Case #: 201601585	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 02/16/2015 3:30 PM	Location of Incident: § 87(2)(b) [REDACTED]	18 Mo. SOL 8/16/2016	Precinct: 75		
Date/Time CV Reported Fri, 02/26/2016 3:59 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Fri, 02/26/2016 3:59 PM		

Complainant/Victim	Type	Home Address
[REDACTED]	[REDACTED]	[REDACTED]

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Jason Nino	02790	937188	NARCBBN
2. SDS Eric Francis	01705	933784	NARCBBN
3. DT3 Steve Lafortune	02570	928609	077 DET

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LCD William Buchanan	00000	924993	GVS DIV
2. DT3 Gabriel Nacelewicz	06511	942255	NARCBBN
3. DT3 Hugo Ortega	03534	935438	NARCBBN

Officer(s)	Allegation	Investigator Recommendation
A . SDS Eric Francis	Abuse: SGT Eric Francis entered and searched § 87(2)(b) [REDACTED] in Brooklyn.	A . Unsubstantiated
B . DT3 Steve Lafortune	Abuse: DT Steve Lafortune refused to provide his name and shield number to § 87(2)(b) [REDACTED]	B . Unsubstantiated
C . DT3 Jason Nino	Abuse: DT Jason Nino refused to provide his name and shield number to § 87(2)(b) [REDACTED]	C . Unsubstantiated

Case Summary

On February 26, 2016, § 87(2)(b) filed this complaint in person at the CCRB.

On February 16, 2015, § 87(2)(b) was alone in his home, located in apartment § 87(2)(b) in Brooklyn. There was a knock on his door, and he opened it. Outside his door were five police officers: DT Steve LaFortune, SGT Eric Francis, DT Jason Nino, and two unidentified plainclothes officers, all assigned to Narcotics Borough Brooklyn North. DT LaFortune asked § 87(2)(b) to step into the hallway, and he did so. Once in the hallway, DT LaFortune placed § 87(2)(b) under arrest. § 87(2)(b) asked what was going on, but the officers did not tell him.

DT Nino and DT LaFortune took § 87(2)(b) down the stairs and out of his building. As he walked away from his apartment, he turned back and saw SGT Francis walk into his apartment, through the front door, which was left open (**Allegation A**). § 87(2)(b) did not see SGT Francis exit his apartment, as he was brought out of the building. There was never any discussion between § 87(2)(b) and the officers about going into his apartment. When § 87(2)(b) and the officers reached the outside, they waited by the sidewalk for several minutes. As they waited, § 87(2)(b) asked DT Nino and DT LaFortune for their names and badge numbers. Neither officer responded (**Allegation B and C**). An unmarked van arrived at the scene, and § 87(2)(b) was placed inside.

He was taken to the 75th Precinct stationhouse, and later to Brooklyn Central Booking, where he was charged with § 87(2)(a) 160.50

§ 87(2)(b)

§ 87(2)(b)

Mediation, Civil and Criminal Histories

- Due to § 87(2)(b)'s arrest, and his stated plans to file a civil lawsuit, this case was ineligible for mediation.
- As of March 8, 2016, no Notice of Claim has been filed regarding this incident. A second request for a related Notice of Claim was sent to the Comptroller's office on June 14, 2016. As of the date of this report, no response has been received (Board Review 01).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint involving § 87(2)(b) (Board Review 03).
- There have been two allegations of misconduct made against DT Nino in one previous case during his eleven year tenure with the NYPD. The allegations were of a questioning and a search. The complaint was closed as complaint withdrawn (Board Review 04).
- There have been eleven allegations of misconduct across eight cases made against SGT Francis during his twelve year tenure with the NYPD. There have been two allegations of unlawful entry made against SGT Francis, one of which was exonerated. The other, case number 201501960, which is SGT Francis' only substantiated CCRB allegation, concerned an incident where SGT Francis entered an apartment after arresting one of the occupants for selling narcotics. Although he eventually obtained a search warrant for the location, the investigation determined that SGT Francis did not have the authority to

initially enter the residence. The CCRB recommended a command discipline, and the NYPD has yet to take any disciplinary action in the case (Board Review 05).

- There have been twenty-eight allegations of misconduct made against DT LaFortune across seven cases during his fourteen year tenure with the NYPD. Only one of these allegations was of refusing to provide his name and badge number, and it was closed as unfounded. There have been two substantiated allegations made against DT LaFortune (Board Review 06):
 - In case 201013036, DT LaFortune was found to have improperly stopped a vehicle. The CCRB recommended charges and DT LaFortune was given instructions by the NYPD.
 - In case 201501960, DT LaFortune was found to have improperly entered a home. The CCRB recommended a command discipline, and the NYPD has yet to take disciplinary action.

Potential Issues

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Findings and Recommendations

Explanation of Subject Officer Identification

- Although none of the officers could recall walking § 87(2)(b) out of the building after he was arrested, LT Buchanan said that one of them was DT Nino. The only officer who fits § 87(2)(b)'s description of the other officer that walked him out of the building is DT LaFortune. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED].

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Allegation A – Abuse of Authority: SGT Eric Francis entered and searched § 87(2)(b), in Brooklyn.

It is undisputed that SGT Francis entered § 87(2)(b)'s apartment. § 87(2)(b) stated that he saw SGT Francis walk into his apartment as he was being led away. He did not see SGT Francis leave the apartment, and none of the officers ever discussed entering § 87(2)(b)'s apartment with him. When he returned to his apartment after being released, he noticed that many drawers and cabinets were open, and their contents had been shifted around (Board Review 07).

SGT Francis stated that he entered § 87(2)(b)'s apartment after the arrest for the purposes of obtaining § 87(2)(b)'s keys to lock the door. SGT Francis testified that he is required to secure an arrestee's apartment in circumstances like this, and usually does so with the

expressed consent of the arrestee. He could not recall if he had consent in this case. He denied searching any parts of the apartment, and stated that his entry was brief and focused on obtaining the keys to lock the front door. All he did was pick up the keys from the living room, and exit the apartment (Board Review 08). The other officers interviewed, DT Nino (Board Review 09), DT LaFortune (Board Review 10), LT William Buchanan (Board Review 11), DT Gabriel Nacelewicz (Board Review 12), and DT Hugo Ortega (Board Review 13), could not recall this part of the incident.

§ 87(2)(g)

§ 87(2)(g)

As such, it is recommended that ***allegation A*** be closed as ***unsubstantiated***.

Allegation B – Abuse of Authority: DT Steve Lafortune refused to provide his name and shield number to § 87(2)(b)

Allegation C – Abuse of Authority: DT Jason Nino refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(b) alleged that, as he waited outside § 87(2)(g) after his arrest, he asked DT LaFortune and DT Nino for their names and badge numbers, and they did not respond to him. None of the officers interviewed could recall § 87(2)(b) requesting anyone's name or shield number. These interviews all occurred more than one year after the incident, so their inability to recall is not remarkable.

§ 87(2)(g)

As such, it is recommended that ***allegations B and C*** be closed as ***unsubstantiated***.

Squad:

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date